



CHAPTER ccxxxiii.

An Act to confer powers on the mayor aldermen and citizens of the city of Bradford with respect to tramways waterworks and gas supply to enable the Corporation and the urban district council of Shipley to exchange portions of their respective gas undertakings and to make further provisions with respect to rating and various matters of local administration and management. A.D. 1903.

[14th August 1903.]

WHEREAS the city of Bradford is a county borough subject to the Acts relating to municipal corporations and under the government of the mayor aldermen and citizens of the city (hereinafter called "the Corporation") acting by the council :

And whereas the Acts and Orders specified in the Schedule to this Act (save so far as any of them is amended by any later Act or Order among the same) are now in force in the city and elsewhere conferring various powers upon the Corporation and are hereinafter referred to collectively as "the former Acts" and each of them separately as an Act or Order of the year in which the same was passed or made and such of the Orders as relate to tramways are collectively referred to as "the Tramway Orders" :

And whereas by the Tramway Orders and by the Acts of 1897 1899 1900 1901 and 1902 the Corporation were authorised to make maintain and work tramways within and without the city and to borrow money for that purpose :

60 & 61 Vict.
c. cclx.
62 & 63 Vict.
c. cclxx.
63 & 64 Vict.
c. ccxxvi.
1 Edw. 7. c. ccl.
2 Edw. 7. c. cxlii.

And whereas the Corporation have constructed certain of the tramways authorised by the Tramway Orders and the said Acts :

And whereas it is expedient that the Corporation should be authorised to construct additional tramways in the city and

A.D. 1903. — themselves or by their lessees to work the same by animal or mechanical power :

And whereas the Corporation are the owners of waterworks whereby they supply with water the city and a considerable area adjacent thereto and it is necessary in order to enable them the more effectually to exercise their powers with respect to the supply of water that they be empowered to make the additional waterworks in this Act described :

And whereas portions of the limits within which the Corporation supply gas are situate in the urban district of Shipley and portions of the limits within which the council of that district supply gas extend into the city :

And whereas by section 31 of the Shipley Improvement Act 1901 it is provided that if at any time any local authority whose district is outside the district of the Shipley Urban District Council but as to the whole or any part thereof within the limits of the Shipley Improvement Act 1901 for the supply of gas shall give not less than six months' notice in writing to the Shipley Council of their desire to purchase such portion of the gas undertaking and works mains and plant of the Shipley Council as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the gas undertaking and works mains and plant of the Shipley Council (except the mains and pipes or other apparatus which shall be necessary for supplying with gas any other part of the limits of the Shipley Council for the supply of gas) and to supply gas within such district then it shall not be lawful for the Shipley Council to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the Shipley Council shall sell and such local authority shall purchase the portion of the gas undertaking and works mains and plant of the Shipley Council (except as aforesaid) within the district of such local authority at such price (being a sum in gross) and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts And it is further provided by the said section 31 of the said Act that any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as the same may be otherwise provided for by Parliament and that the Shipley Council shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under

this Act And it is further provided by the said section that after the completion of such purchase all obligations on the part of the Shipley Council to supply gas within the district of the purchasing authority shall cease and determine :

And whereas the Corporation in accordance with the said section have given notice to the Shipley Council of their desire to purchase such portion of the gas undertaking and works mains and plant of the Shipley Council as is contained within the said city and the rights to supply gas within that portion of the city within which the powers of the Shipley Council with respect to gas extend and an agreement has been entered into between the Shipley Council and the Corporation accordingly dated the eleventh day of November one thousand nine hundred and two :

And whereas it has also been agreed between the Shipley Council and the Corporation that the Corporation should sell and the Shipley Council should purchase that part of the gas undertaking and works mains and plant of the Corporation which is contained within the district of the Shipley Council and it is expedient that effect should be given to the said agreement as in this Act provided :

And whereas the Corporation have electricity works established under the powers of the Bradford Electric Lighting Order 1883 by means of which they supply the city with energy for motive power and lighting purposes and it is expedient that provision with reference thereto be made as in this Act set forth :

And whereas it is expedient that the Corporation should be enabled to raise moneys for other the purposes of this Act :

And whereas it is expedient that provision should be made as in this Act contained for the more economical and efficient collection of the rates leviable within the city :

And whereas it is expedient that the other provisions in this Act contained should be sanctioned :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the proposed tramways waterworks and street works with a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands respectively have been duly deposited with the clerk of the peace for the west riding of the county of York which plans sections and book of reference are hereinafter referred to as " the deposited plans sections and book of reference " :

A.D. 1903.
—

And whereas estimates have been prepared by the Corporation for the purchase of lands for and for the execution of the various works authorised by this Act and such estimates are as follows :—

For tramways nine thousand three hundred and ninety-seven pounds ;

For waterworks two thousand six hundred pounds ;

For street improvement and new road twenty thousand pounds ;

For acquisition of lands for and for cemetery purposes eight thousand pounds ;

For the purposes of extending the town hall and municipal buildings under the provisions of the Act of 1868 eighty-five thousand pounds :

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-eighth day of October one thousand nine hundred and two after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the Yorkshire Daily Observer a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning that meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the funds and rates at the disposal of the council :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the thirteenth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the city by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

A.D. 1903

PRELIMINARY.

1. This Act may be cited as the Bradford Corporation Act 1903. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—Waterworks.
- Part IV.—Street works.
- Part V.—General works.
- Part VI.—Lands.
- Part VII.—Gas and electricity.
- Part VIII.—Rates and rating.
- Part IX.—Financial provisions.
- Part X.—Miscellaneous.

3. So far as they are applicable for the purposes and are not inconsistent with the provisions of this Act— Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) ;

The Waterworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profits to be received by the undertakers when the waterworks are carried on for their benefit and except the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in the 44th section of that Act) ; and

The Waterworks Clauses Act 1863 ;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary use of lands near the railway during the construction thereof but for the purpose only of constructing the service reservoirs and works connected therewith and the new road by this Act authorised ;

And section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870 ;

are hereby incorporated with this Act.

4. In this Act unless the subject or context otherwise require words and expressions to which by the former Acts or by the Acts wholly or partially incorporated with this Act meanings are assigned have in this Act the same respective meanings : Interpretation.

“The city” means the city of Bradford :

“The tramways” means the tramways by this Act authorised :

A.D. 1903.
—

“Mechanical power” includes electric and every other motive power not being animal power :

“Engine” includes motor :

“Statutory borrowing power” means any power whether or not coupled with a duty—

Of borrowing or continuing on loan or re-borrowing money ; or

Of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money :

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from the lands undertakings and other property for the time being of the Corporation and rates and moneys leviable by or on the precept of the Corporation.

In the Railways Clauses Consolidation Act 1845 for the purposes of this Act—

The expressions “the railway” “the work” and “the centre of the railway” shall mean the service reservoirs and works connected therewith and the new road by this Act authorised and the boundaries thereof respectively.

PART II.

TRAMWAYS.

Power to
make tram-
ways.

5. Subject to the provisions of this Act the Corporation may make lay down work use and maintain in the city the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper wires poles conduits tubes cables sidings loops junctions and other works and conveniences connected therewith.

The tramways hereinbefore referred to are as follows (that is to say) :—

Tramway No. 1 (a double line about 2 furlongs 1 chain in length) commencing in Forster Square by a junction with the existing tramway continuing along Forster Square Church Bank Barkerend Road and Otley Road and terminating in Otley Road by a junction with the existing tramway :

Tramway No. 2 (2 furlongs 8 chains in length) whereof 1 furlong 4·70 chains will be double line and 1 furlong 3·30 chains will be single line commencing in Allerton

Road by a junction with the existing tramway at its termination near Ivy Lane continuing thence along Allerton Road and Stoney Lane and terminating in Stoney Lane near Prune Park Lane :

A.D. 1903.

Tramway No. 3 (about 1 furlong 3·40 chains in length) whereof 8·40 chains will be double line and 5 chains will be single line commencing in Highgate by a junction with the existing tramway at its termination near Heaton Road continuing thence along Highgate and Leylands Lane and terminating in Leylands Lane near Highgate :

Tramway No. 4 (a double line 3 furlongs 3·80 chains in length) commencing in Bridge Street by a junction with the existing tramway near Market Street continuing along Bridge Street Norfolk Street Nelson Street Croft Street and Bridge Street and terminating in Bridge Street by a junction with Tramway No. 1 authorised by the Act of 1902 near Croft Street.

6. The tramways shall be constructed on a gauge of four feet Provided always that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet and six inches in width.

Gauge of tramways and width of carriages.

7. The Corporation shall before they open or break up any road for the purpose of constructing or laying down any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing or laying down such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction and laying down of any of the tramways until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Plan of proposed mode of construction.

8.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the sub-structure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for not maintaining rails and roads.

(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the city that the Corporation have made default in complying with the provisions in this section

A.D. 1903. — contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Passing-places to be constructed where less than 9 feet 6 inches width left between footway and tramway.

9.—(1) Where in any road in which a double line of tramway of the Corporation is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a cross over or cross overs connecting the one tramway with the other and by the means of such cross over or cross overs the traffic shall when necessary be diverted from one tramway to the other.

(2) The Corporation in exercising the powers of this section and of section 11 of the Act of 1899 shall be subject to all provisions for the protection of railway companies in the Acts and Orders authorising the tramways in connection with which such powers shall be exercised and all provisions for such protection in such Acts and Orders shall apply and have effect accordingly.

Power to make additional crossings &c.

10. The Corporation may subject to the provisions of this Act and with the consent of the Board of Trade make maintain alter and remove such crossings passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage houses or works of the Corporation Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if the owners or occupiers of one third of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of the intention to so lay any such rail express their objection thereto.

Extending provisions of Acts of 1897 1899 1900 and 1902.

11. The following enactments (that is to say) :—

Of the Act of 1897—

Section 10 (Provisions as to motive power) ;

- Section 11 (Special provisions as to use of electric power) ; A.D. 1903.
Section 12 (Byelaws) ;
Section 13 (Amendment of the Tramways Act 1870 as to byelaws by local authority) ;
Section 14 (Orders &c. of the Board of Trade) ;
Section 16 (Power to Corporation to work tramways) ;
Section 17 (Regulations) ;
Section 19 (As to fares on Sundays and holidays) ;
Section 50 (Application of tramways revenue) ;
Section 51 (As to deficiency in receipts) :

Of the Act of 1899—

- Section 11 (Power to lay down double or interlacing lines in place of single lines and vice versa) ;
Section 12 (Powers of sale leasing working &c.) :

Of the Act of 1900—

- Section 12 (Cheap fares for labouring classes) :

Of the Act of 1902—

- Section 8 (Rails of tramways) ;
Section 11 (Tramways to be kept on level of surface of road) ;
Section 16 (Apparatus used for mechanical power to be deemed part of tramway) ;
Section 17 (Attachment of brackets to buildings) ;
Section 18 (Inspection by Board of Trade) ;
Section 19 (Period for completion of works) ;
Section 20 (Penalty for malicious damage) ;
Section 22 (For protection of Postmaster-General) ;
Section 26 (Tolls &c.) ;
Section 29 (Provision as to general Tramway Acts) ;

shall extend and apply to and in relation to the tramways in like manner as if those enactments were in this Act re-enacted with special reference thereto. Provided that before carrying any balance of the tramway revenue in any year to the city fund the Corporation shall pay the interest on moneys borrowed by them for tramway purposes under and provide the requisite instalments of sinking fund prescribed by the Act of 1897 the Act of 1899 the Act of 1900 the Act of 1901 the Act of 1902 and this Act respectively in respect of money borrowed for tramway purposes and the said section 50 of the Act of 1897 shall be read and construed accordingly.

A.D. 1903.

For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

12. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the company") the following provisions shall have effect unless otherwise agreed between the Corporation and the company (that is to say) :—

- (1) The provisions of section 9 of the Bradford Corporation Tramways Order 1890 shall extend and apply to the tramways by this Act authorised and to any works or apparatus constructed or laid down for the generation or supply of mechanical power under the powers of this Act and the said section shall be read and have effect as if the Tramway No. 4 by this Act authorised had been referred to therein instead of Tramway No. 1B :
- (2) Any poles which the Corporation may find it necessary to fix for carrying the overhead trolley wires in connection with the tramways in or upon any bridge carrying a street over any railway of the company shall be fixed in the abutments or piers of such bridge and if and whenever the company require to remove or alter such abutments or piers the Corporation shall at their own expense remove any such poles and may (if necessary) re-erect them in some other position on such bridge to be reasonably approved by the company's engineer :
- (3) Where any tramways will pass in front of the entrances to any goods stations of the company no additional crossing passing place siding junction turnout or other work shall be made for or in connection therewith for the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance without the consent of the company and without such consent no carriage used on the tramways shall be stopped or permitted to be stopped within such distance and lengths.

Periodical
revision of
rates and
charges.

13. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the city or by the Corporation that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may if they think fit direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the

rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges authorised to be taken or levied in respect of the tramways of the Corporation.

A.D. 1903.

A copy of this section shall be printed on every printed copy of the byelaws of the Corporation with respect to tramways.

The words " Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Corporation " contained in section 27 of the Act of 1902 are hereby repealed.

PART III.

WATERWORKS.

14. Subject to the provisions of this Act the Corporation may construct and maintain in the situation and lines and according to the levels shown on the deposited plans and sections relating thereto the several works shown on the deposited plans which are as follows (that is to say) :—

Power to
construct
works. }

Work No. 1 A service reservoir situate at Hartshead Moor Top in the parish of Clifton :

Work No. 2 A line or lines of pipes (No. 1) wholly in the said parish of Clifton commencing in the southern side of the before-mentioned Reservoir (No. 1) and terminating in the public highway known as the Halifax and Huddersfield road near Scholes Lane by a connection with an existing main of the Corporation :

Work No. 5 A catchwater or conduit in the said township or parish of Stonebeck Down commencing at or near a spring known as Squire Well situate on Ramsgill Moor 17 chains or thereabouts measured in a north-easterly direction from the north end of Ramsgill Dam and terminating by a connection with the existing Bradford Corporation aqueduct at the Ramsgill North Chamber :

Work No. 6 A catchwater or conduit in the said township or parish of Stonebeck Down commencing at or near a spring situate on Ramsgill Moor 26½ chains or thereabouts measured in a westerly direction from the Ramsgill North

A.D. 1903.
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Chamber and terminating by a connection with Work No. 5 hereinbefore mentioned at a point 26 chains or thereabouts measured in a westerly direction from the Ramsgill North Chamber.

Power to deviate for waterworks.

15. Subject to the provisions of this Act the Corporation may in the construction of the waterworks by this Part of this Act authorised deviate laterally (except in the case of embankments of reservoirs) from the lines or position thereof as shown on the deposited plans relating thereto to any extent within the limits of deviation defined on those plans and where the line of any work is shown on those plans as passing along any road and no limits of lateral deviation are marked on the deposited plans the Corporation may in making such work deviate laterally to any extent within the boundaries of such road and the Corporation may also deviate from the levels of the waterworks by this Part of this Act authorised as delineated on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that the Corporation shall not deviate from the levels of any line or lines of pipes so as to cause any part thereof to be raised above the surface of the ground.

New works to form part of existing waterworks undertaking.

16. The waterworks to be constructed under the authority of this Act shall for all purposes whatsoever (inclusive of water rents rates and charges) be deemed part of the waterworks undertaking of the Corporation.

Corporation to abandon portions of authorised works.

17. The Corporation shall abandon the construction of the Hartshead Moor Top Service Reservoir situate in the parish of Clifton in the west riding of the county of York and authorised by the Act of 1902 and so much of the line of pipes authorised by that Act as would lie between the said reservoir and a point in Birkby Lane opposite to Pits Lane.

PART IV.

STREET WORKS.

Power to execute street works.

18. Subject to the provisions of this Act the Corporation upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference and in the line and situation and according to the levels shown on the deposited plans and sections may make and if made shall maintain a new road in the parish and urban district of Baildon in the west riding of the county of York commencing at Baildon Green by a junction with Green Lane near Baildon Green Farm and terminating by a junction with Prod Lane at Prod Gate.

[3 Edw. 7.] *Bradford Corporation Act, 1903.* [Ch. ccxxxiii.]

19. In constructing the works authorised by this Part of this Act the Corporation may deviate from the centre line shown on the deposited plans to the extent of the limits of deviation marked thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

A.D. 1903.

Power to deviate for street works.

20. When and so soon as the Corporation shall have completed the new road authorised by this Part of this Act so much of the road or way known as Prod Lane in the said parish of Baildon as lies between the termination of the said new road and the Glen Gate shall be and become by virtue of this Act a public street or road and shall be made up and maintained by the Corporation with and as part of the aforesaid new road.

Prod Lane to become public road.

21.—(1) The Corporation may in connection with the construction of the new road authorised by this Part of this Act and also of the road mentioned in clauses 4 and 5 of the Second Schedule to the Act of 1899 wherever necessary for constructing the said roads in a straight or convenient line and for the purpose of adjusting and improving the boundaries of the Baildon Moor of the Corporation where the same by reason of the construction of the said roads or either of them are effected by severance or otherwise exchange any lands forming part of the said Baildon Moor for equivalent quantities of other land and such other land shall be kept and used according to the provisions of the Act of 1899 as part of Baildon Moor.

Exchange of lands.

(2) The Corporation shall debit the account for which any lands the subject of such exchange are appropriated with a reasonable sum by way of purchase-money for the said lands and shall carry that sum to the credit of the fund out of which the lands the subject of such exchange were acquired.

PART V.

GENERAL WORKS.

22. Subject to the provisions of this Act the Corporation may within the limits of deviation (if any) shown on the deposited plans make maintain and provide all such incidental works and conveniences as may be necessary or expedient in connection with or for the purposes of the tramways and waterworks described in and authorised by this Act or any of them and for the purposes of the said new road in the urban district of Baildon.

Power to make general works.

A.D. 1903.

PART VI.

LANDS.

Power to
take lands.

23. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act.

Purchase of
and dealing
with certain
specified
lands.

24. The Corporation may enter upon take and use the following lands for the purposes hereinafter in each case specified (that is to say) :—

For and in connection with the waterworks undertaking of the Corporation—

Lands in the township or parish of Stonebeck Up in the said rural district of Pateley Bridge situate on both sides of and adjoining the River Nidd at High Woodale and extending along both banks of the said river from near the old lime kiln to a point about 10 chains measured in an easterly direction along the course of the said river below the said lime kiln :

For and in connection with the gasworks undertaking of the Corporation—

Lands in the city bounded on the west by Valley Road on the north and in part on the east by property of the Corporation and on the south by property belonging or reputed to belong to Frances Emma Lonsdale or her trustees :

For the purposes of the improvement authorised by and described in the Act of 1902 as the “ widening and improvement of Church Bank on the north-west side thereof between the General Post Office and Stott Hill ”—

Lands forming part of the graveyard of St. Peter’s parish church and lying on the north-westerly side of Church Bank :

And the Corporation may within the limits of the lands lastly hereinbefore described alter the line and extent of the said improvement in the manner shown upon the deposited plans :

For the purposes of a burial ground or cemetery—

A.D. 1903.

Lands at Thornton in the city containing together a total area of 46 acres 2 roods 32 perches or thereabouts and comprising—

- (1) a piece of land adjoining the Halifax Thornton and Keighley Railway and lying between that railway and Thornton Road ;
- (2) a piece of land lying between Thornton Road and Hill Top Road ; and
- (3) a piece of land at a place called “The Half Acre” adjoining Hill Top Road and the road leading thereto by the Half Acre Farm.

25. If any omission misstatement or erroneous description is found to have been made of any lands or of any owners lessees or occupiers of any lands described or intended to be described in the deposited plans or book of reference the Corporation may apply to two justices not being members of the council for the correction thereof after giving ten days’ notice to the owners lessees and occupiers of the lands affected by the proposed correction and if it appears to such justices that the omission misstatement or erroneous description arose from mistake they shall certify the same accordingly stating the particulars of the omission misstatement or erroneous description and such certificate shall be deposited with the clerk of the peace for the west riding of the county of York and a duplicate of the certificate shall also be deposited with the officer or person with whom the plans or book of reference to which it relates was deposited and such certificate and duplicate respectively shall be kept with the other documents to which it relates and subject and according to the same enactments and provisions as apply to those other documents and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Corporation may enter on take hold and use those lands accordingly.

Correction of errors &c. in deposited plans and book of reference.

26. The provisions of section 46 (As to removal of human remains) of the Act of 1902 shall extend and apply to and in the case of any further portion of the burial ground of St. Peter’s churchyard which the Corporation may acquire under the powers of this Act.

As to removal of human remains.

27. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Limitation of time for compulsory purchase of lands.

A.D. 1903.

Power to
acquire addi-
tional lands
by agree-
ment.

28. The Corporation may for the purposes of this Act in addition to the lands they are authorised to acquire and hold under the powers of the former Acts and under the other powers of this Act from time to time by agreement acquire in fee either by purchase or by way of exchange or otherwise any lands not exceeding in the whole ten acres or any easement right or privilege therein thereunder thereover or thereupon (not being an easement right or privilege of water in which persons other than the grantors have an interest) but the Corporation shall not deal with any such lands so as to create or permit a nuisance.

Incorporation of provisions of former Acts relating to lands.

29. The following enactments (that is to say) :—

Of the Act 1892—

Section 7 (Corporation may acquire easements only in certain lands) :

Of the Act 1902—

Section 49 (Consideration for acquisition of land) ;

Section 50 (Power to grant easements &c. by agreement) ;

Section 52 (Power to retain sell &c. lands) ;

Section 53 (Proceeds of sale of surplus land) ;

Section 54 (Proceeds of sale of lands) ;

Section 55 (Corporation may use their own lands for purposes of Act) ;

shall extend and apply to and in relation to the lands by this Act authorised to be acquired as if those enactments were in this Act re-enacted with special reference thereto.

Restriction on taking houses of labouring class.

30. The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the

expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. A.D. 1903.

PART VII.

GAS AND ELECTRICITY.

31. In this Part of this Act the following expressions have the following meanings (that is to say) :— Interpretation in this Part of Act.

"The Shipley Council" means the urban district council of Shipley :

"The district" means the urban district of Shipley.

32.—(1) The Corporation shall purchase and the Shipley Council shall sell such portion of the gas undertaking and works mains and plant of the Shipley Council as is contained within the city and the rights to supply gas within that portion of the city within which the powers of the Shipley Council with respect to gas extend. Purchase by Corporation of portion of Shipley undertaking and by Shipley Council of portion of Corporation undertaking.

(2) The purchase and sale of the said undertaking and rights shall take effect as on and from the first day of January one thousand nine hundred and three.

(3) The price to be paid by the Corporation to the Shipley Council shall be the sum of thirty-one thousand pounds.

(4) The purchase money shall be paid and the sale and purchase completed within one month from the date of the passing of this Act and from the first of January one thousand nine hundred and three until the actual date of completion the Corporation shall pay to the Shipley Council interest on the said purchase money after the rate of five per centum per annum.

(5) The Shipley Council shall permit the Corporation to take over and the Corporation may take the said portion of the said undertaking and at the expense of the Corporation to couple up the mains and pipes of the Shipley Council to the Corporation mains and supply gas and charge the consumers in the said district therefor and the Corporation may recover all charges and rents due from the consumers as from and after the said first day of January one thousand nine hundred and three.

(6) The Corporation shall sell and the Shipley Council shall purchase for the sum of eight hundred pounds such portion of the

A.D. 1903. — gas undertaking and works mains and plant of the Corporation as is contained within the district of the Shipley Council the purchase to be completed within one month of the date of the passing of this Act.

The said sum of thirty-one thousand pounds shall be applied by the Shipley Council in the same manner as money received from sales of land under the Shipley Improvement Act 1901.

As to powers in transferred area.

33. The Corporation shall within the portion of the area transferred to them under the provisions of this Act have and may exercise the like rights powers privileges and shall be subject to the same obligations as they have or may exercise or are subject to within the city Provided that the Corporation shall not charge within the area so transferred a higher price for gas than that charged by them for gas supplied in like circumstances within the city.

Subject to the provisions of this Act all the Acts relating to the supply of gas by the Corporation shall have effect within the area transferred to them and the Acts relating to the supply of gas by the Shipley Council shall cease to apply within that area.

The foregoing provisions of this subsection shall apply mutatis mutandis to and in relation to the transfer to the Shipley Council of that portion of the gas undertaking of the Corporation which is within the district.

Transfer of undertaking to be by deed.

34. The purchase and sale of the respective portions of the undertakings of the Shipley Council and the Corporation shall be carried into effect by a deed duly stamped and truly stating the consideration.

As to construction and placing of pipes &c. between mains and meters.

35. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

(1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Corporation's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

(2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :

(3) The specification shall be published twice in some newspaper circulating in the city and a copy thereof shall be kept exhibited in the gas office of the Corporation :

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building : A.D. 1903.

(5) When any such pipe meter or fittings as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipe meter and fittings and if the officer is not permitted to make the inspection or if the pipe or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid :

(7) Nothing in this section shall apply to any pipe meter or fittings belonging to any railway company.

36. Twenty-four hours' notice in writing shall be given to the Corporation by every gas consumer before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Corporation. Gas consumers to give notice to Corporation before removing.

37. If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to Power to refuse supply to persons in

A.D. 1903. him by the Corporation without paying to them all gas or meter
debt for other rent due from him to the Corporation they may refuse to furnish to
premises. him a supply of gas until he pays the same.

Notice to 38. A notice to the Corporation from a consumer for the
discontinue discontinuance of a supply of gas shall not be of any effect unless it
supply of be in writing signed by or on behalf of the consumer and be left at
gas. or sent by post to the gas office of the Corporation.

Period of 39. In the event of any meter used by a consumer of gas
error in de- being tested in manner provided by the Sale of Gas Act 1859 and
fective being proved to register erroneously within the meaning of the said
meters. Act such erroneous registration shall be deemed to have first arisen
during the then last preceding quarter of the year unless it be proved
to have first arisen during the then current quarter The amount
of the allowance to be made to or of the surcharge to be made
upon the consumer by the Corporation shall be paid by or to the
Corporation to or by the consumer as the case may be and shall
be recoverable in the like manner as gas rents are recoverable by
the Corporation.

Corporation 40. The Corporation may contract with any local authority
contracts for company or persons beyond the city (but only with the consent in
supply out- writing of the local authority of the district within which the supply
side city. is to be given and of any company or person supplying gas under
parliamentary powers in that district) for the supply to them
respectively of gas upon such terms and conditions and for such
periods not exceeding in any case seven years from the making
of the contract as shall be agreed upon.

As to 41. Notwithstanding anything contained in the Electric
charges for Lighting Acts 1882 and 1888 a person shall not be entitled to
supply of demand from the Corporation a supply of electrical energy to
electrical premises having a separate supply of energy unless such person
energy where shall have previously agreed to pay to the Corporation such
consumer has minimum annual sum as will give to the Corporation a reasonable
independent return on the capital expenditure and other standing charges
supply. incurred by the Corporation to meet the possible maximum
demand of such person In case the Corporation and the person
demanding such supply of electrical energy shall fail to agree
on the amount of such minimum annual sum to be paid by such
person the amount of such minimum annual sum shall be fixed
by an electrical engineer to be appointed as arbitrator by the
Board of Trade.

Protection of 42. Any electric motors or electric fittings let for hire by the
motors &c. Corporation in connection with their electric undertaking shall not
from distress.

be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or in any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such motors and fittings have upon them a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof. A.D. 1903.

PART VIII.

RATES AND RATING.

43.—(1) The Corporation may if they think fit in lieu of themselves levying the general district rate and other rates leviable by them within the city or any part thereof order such rates to be made in the same manner as a city rate and assess the contribution to such rates respectively on the several parishes within the city and enforce the payment thereof in the same manner as in the case of the city rate but in assessing such rate regard shall be had to the exemptions (partial or otherwise) for the time being applicable to such general district and other rates respectively in respect of any property in such parish and if any such order be made by the Corporation such rates shall be assessed levied and collected by the overseers in the same manner and under the same provisions (including the provisions as to rating of owners instead of occupiers compositions and appeals) as in the case of the poor rate but subject to the exemptions aforesaid and such rates or any of them may be assessed levied and collected either separately or together with the poor rate assessed and levied in respect of the hereditaments rateable to such rates respectively. General district and other rates may be assessed as city rates.

(2) The expenses incurred by the overseers in connection with the collection of rates under the provisions of this section shall in lieu of being paid out of the poor rate be apportioned among and paid out of the several rates so collected in such manner and in such proportions as may be agreed on by the Corporation and the overseers.

44. Any assistant overseer or other officer and any collector of the poor rates may be required to collect the general district rate and any other rates or any water gas electric or other rents and charges leviable by the Corporation and any collector holding office at the passing of this Act shall if required by him be paid in respect of such additional collection such additional remuneration Collection of rates.

A.D. 1903. (if any) as may be agreed between himself and the Corporation or in case of difference may be settled by the Local Government Board.

Saving for
Bradford
assistant
overseers.

45. Nothing in this Act contained shall be deemed to prejudice or affect the position of Christopher William Hudson and Watson Rogers assistant overseers for the township of Bradford under the provisions of the Act of 1897 and of the agreement between them and the Corporation dated the twenty-fifth day of January one thousand nine hundred and two and they shall continue to hold their offices respectively on the terms stated in such agreement and any compensation which may become due to them under the Act of 1897 shall be calculated upon the basis of the salaries which the said Christopher William Hudson and Watson Rogers shall be receiving at any time when their services may be dispensed with.

Assistants to
overseers.

46. The Corporation may appoint and remove such officers as they may deem necessary to assist the overseers of the township or parish of Bradford in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Corporation and paid out of the poor rate and other local rates and funds in such proportions as may be agreed on by the Corporation and the overseers.

Security to
be given by
officers.

47. All officers clerks and collectors appointed by the Corporation for the purposes of collecting rates shall give such security for the due performance of their duties as may be required by the Corporation in so far as they are not required to give security under the Poor Law Amendment Act 1844.

All securities so given shall be deposited with the Corporation.

Power of im-
prisonment
in default of
distress not
to apply.

48. Nothing in this Act shall authorise imprisonment in default of distress for non-payment of general district or other rate which may by virtue of this Act be levied and collected along with or as part of the poor rate but proceedings for the recovery of such rates shall be subject to the provisions of section 6 (Sum recoverable by summary order to be recoverable as a civil debt) and section 35 (Recovery of civil debts in court of summary jurisdiction) of the Summary Jurisdiction Act 1879.

Rate for pub-
lic library
art gallery
and museum.

49. Notwithstanding anything contained in the Public Libraries Acts 1892 to 1901 the rate or addition to a rate leviable for the purposes of the Public Libraries Acts in the city for any one financial year may amount to but shall not exceed twopence in the pound.

Audit of
accounts of
overseers and
collectors.

50. The accounts of the overseers assistant overseers and collectors of poor and other rates relating to the rates to be levied

and collected by them or any of them pursuant to this Part of this Act shall be submitted to and be audited by the district auditor in the manner provided by section 37 of the Divided Parishes and Poor Law Amendment Act 1876 and such rates shall be deemed to be rates within the meaning of that section. A.D. 1903.

The overseers shall prepare and submit to the district auditor at every audit of their accounts a financial statement in duplicate in the form and containing the particulars from time to time prescribed by the Local Government Board in respect of the rates to be levied by them as aforesaid one of such duplicates shall have the stamp duty chargeable according to the scale contained in the District Auditors Act 1879 affixed thereon and calculated according to the total of the sums paid to the Corporation during the period to which the statement relates and the provisions of the District Auditors Act 1879 as to the duties of the auditor with reference to such duplicates shall apply as if the said duplicates were prepared and submitted under that Act.

The Corporation shall repay to the said overseers the amount of any stamp duty which may be paid by them upon any financial statement pursuant to the provisions of this Act.

The provisions of sections 5 and 6 of the District Auditors Act 1879 shall apply to the accounts of the overseers and collectors and to the stamp duty on such financial statements as aforesaid and any overseer who shall fail to comply with the provisions of this Act with respect to a financial statement shall be liable to the penalty provided in section 7 of the last-mentioned Act.

PART IX.

FINANCIAL PROVISIONS.

51. The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of any of the recited Acts the Public Health Acts or any public general Act borrow at interest on the following securities and for the following purposes the following sums (that is to say) :— Power to borrow.

On the security of the tramway revenue and city fund and city rate—

(A) For the construction of the tramways nine thousand three hundred and ninety-seven pounds :

On the security of the revenue of the gas undertaking and of the city fund and city rate—

A.D. 1903.

(B) For the purpose of the acquisition of lands for gas purposes by this Act authorised to be acquired and the payments to be made upon the purchase of the portions of the Shipley gas undertaking the sum necessary for those purposes :

On the security of the revenue of the water undertaking of the Corporation and of the city fund and city rate—

(c) For and in relation to the acquisition of lands for and for the construction of waterworks and for the purposes of the water undertaking of the Corporation two thousand six hundred pounds :

On the security of the city fund and city rate—

(D) For the purpose of the acquisition of lands for cemetery eight thousand pounds ;

(E) For the purpose of the town hall and municipal buildings eighty-five thousand pounds ;

(F) For and in relation to expenses incurred in giving effect to the section of this Act of which the marginal note is “ Further provisions as to isolation in certain cases ” such sums as the Local Government Board may sanction :

On the security of the district fund and general district rate—

(G) For and in relation to the acquisition of lands for and for the construction of the new road in Baildon and the works of street improvement authorised by this Act any sums not exceeding twenty thousand pounds.

The Corporation may by way of collateral security include the city fund and city rate in all or any mortgages or charges created under the powers of this Act.

In calculating the sums the Corporation may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned. The powers of the Corporation as to borrowing and reborrowing shall not be restricted by any of the provisions of the Public Health Acts.

As regards all rates to be laid for the purposes of this Act relating to water and gas and as regards any increase in the city rate by reason of its being included in any mortgage or charge created under the powers of this Act by way of collateral security and as regards all rates to be laid for the purposes of the town hall and municipal buildings as far as the same are to be used for sanitary purposes or purposes of water gas markets or a conditioning house

[3 EDW. 7.] *Bradford Corporation Act, 1903.* [Ch. ccxxxiii.]

the occupiers of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance and of any land used as arable meadow or pasture ground only or as woodlands market gardens or nursery grounds and of any land covered with water or used only as a canal or towing-path and the owners of any tithes or tithe commutation rentcharge shall be assessed to such rates in respect of the same in the proportion of one-fourth part only of the net annual value thereof. A.D. 1903.

52. The Corporation shall repay moneys borrowed under the powers of this Act within the following periods (in this Act referred to as "the prescribed periods") from the date of the borrowing of the said moneys respectively (that is to say) :— Periods for repayment &c.

As to moneys borrowed for tramways within any period not exceeding thirty years :

As to moneys borrowed for the purposes of Part VII. (Gas and Electricity) of this Act within any period not exceeding thirty years :

As to moneys borrowed for the purposes of the waterworks within any period not exceeding sixty years :

As to moneys borrowed for the acquisition of lands within any period not exceeding sixty years :

As to moneys borrowed for the town hall and municipal buildings fifty years :

As to moneys borrowed for and in relation to the acquisition of lands and for the construction of the new road in Baildon and other works within any period not exceeding sixty years :

As to moneys borrowed for and relation to expenses incurred in giving effect to the section of this Act of which the marginal note is "Further provisions as to isolation in certain cases" within such period as the Local Government Board may sanction.

53. The following sections of the former Acts (that is to say) :— Incorporating certain sections of former Acts.

Of the Act of 1900—

Section 51 (As to sinking fund) ;

Section 52 (Power to re-borrow) ;

Section 53 (Receiver) ;

Section 54 (Protection of lenders from inquiry) ;

Section 55 (Corporation not to regard trusts) ;

Section 56 (Return respecting sinking fund to Local Government Board) :

A.D. 1903.

Of the Act of 1902—

Section 82 (Provision as to mortgages) ;

Section 84 (Mode of repayment) ;

Section 86 (Application of money borrowed) ;

shall extend and apply mutatis mutandis to and in relation to the like matters as if they were re-enacted in this Act.

Corporation
bills.

54. Instead of raising by the creation and issue of stock or of mortgages any money which they are authorised to raise by either of these methods (whether under this Act or any other Act of Parliament or otherwise howsoever) the Corporation may if they see fit raise the money for those purposes by means of bills subject to and in accordance with the following provisions :—

- (1) Bills issued by the Corporation shall be called “ Bradford Corporation bills ” :
- (2) A Bradford Corporation bill shall be a bill in the form prescribed by regulations made in pursuance of this Act for the payment of the sum named therein in the manner and at the date therein mentioned so that the date be not less than three or more than twelve months from the date of the bill :
- (3) Such bills may be offered for purchase by tender in such manner on such conditions and after public advertisement in such manner as the Corporation determine :
- (4) The bills shall be issued under the authority of a warrant sealed by the Corporation :
- (5) Each bill shall be for the amount directed by the Corporation not being less than five hundred pounds :
- (6) Each bill shall be under the seal of the Corporation :
- (7) A register of the bills issued or renewed by the Corporation shall be kept by the treasurer or such other person as may be appointed by the Corporation and such register shall show the amount of each bill the principal money raised by such bill the statutory borrowing power in respect of which the bill is issued the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Corporation :
- (8) The Corporation shall not issue bills payable to bearer :
- (9) The Corporation shall before issuing any bill under this Act from time to time make regulations with respect to bills subject to and in accordance with this Act and shall furnish

to the Local Government Board a copy of any regulations so made. Such regulations shall provide— A.D. 1903.

- (A) For regulating the preparation form mode of issue mode of payment and cancellation of bills ;
 - (B) For regulating the issue of a new bill in lieu of one defaced lost or destroyed ;
 - (C) For preventing by the use of counterfoils or of a special description of paper or otherwise fraud in relation to bills ;
 - (D) For a proper discharge to be given upon the payment of a bill :
- (10) The Corporation may enter into such arrangements with any bank for carrying into effect the provisions of this Act with respect to the issue of bills and to the payment of the principal sum named therein and to all matters relating thereto and for the proper remuneration of such bank with reference thereto as they may think proper. Such remuneration shall be apportioned between the several funds or rates to which the principal money so raised is charged :
- (11) The amount of money received by the Corporation in respect of a bill shall be deemed to be principal money raised by means of such bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised :
- (12) The Corporation shall provide from the same source and pay at the appropriate times into a sinking fund or sinking funds the same sums for repayment of the principal money so raised as they would have done if mortgages of the same amount had been issued and such fund or funds shall be dealt with in the same manner as if the same were a mortgage sinking fund and the Corporation shall pay the interest on the principal money out of the fund or rate to which the principal money so raised is charged :
- (13) The aggregate amount payable on bills current at any one time shall not exceed the sum of five hundred thousand pounds except by the amount payable on bills issued shortly before any other bills fall due in order to pay off those bills :
- (14) The Corporation may subject to the provisions of the preceding subsection renew bills at maturity :
- (15) Money raised by the issue of bills shall be employed by the Corporation for the purposes of the several statutory borrowing powers in respect of which the bills are respectively issued :

A.D. 1903.

(16) For the repayment of the principal money raised by bills the Corporation may raise money by the creation of stock or issue of mortgages or further bills but save as aforesaid the powers given to the Corporation to raise moneys by the creation of stock or mortgages shall be suspended to the extent to which moneys have been raised by the issue of bills :

(17) A Bradford Corporation bill shall entitle the holder to payment at maturity of the sum expressed in such bill to be payable and shall be charged on all the revenues of the Corporation :

(18) The treasurer shall within twenty-one days after the thirty-first day of March in any year during which any bills have been issued paid off or are outstanding under this section transmit to the Local Government Board a return in such form as that Board may prescribe and containing all such particulars as they may require in regard to the issue and payment of bills by the Corporation.

PART X.

MISCELLANEOUS.

Extension of
time for con-
struction of
sewage
works

55. The time limited by Article XXVIII. of the Bradford (Yorks) Extension Order 1899 for the erection of works for the disposal of sewage which time was by the Act of 1901 extended until the thirty-first day of December one thousand nine hundred and two is hereby extended until the thirty-first day of December one thousand nine hundred and four.

Further pro-
visions as to
isolation in
certain cases.

56.—(1) If the Corporation deem it necessary in cases of plague small-pox cholera and typhus to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising any officer of the Corporation to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. Provided also that reasonable notice shall be given to the person in charge of any house from which a removal is proposed before application is made to a justice under this section.

(2) The Corporation shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

A.D. 1903.

(3) The Corporation may for the purposes of this section—

Themselves build any place of reception ;

Contract for the use of any place of reception.

And expenses incurred by the Corporation under this section shall be paid out of the district fund and general district rate Provided that for the purpose of building any such place of reception the Corporation may borrow money under and subject to the provisions of this Act.

57. No occupier of any business premises in a building more than two storeys high shall employ more than ten persons on any one floor if such floor is above the first floor and in direct communication with the lower part of the building unless the floor is provided with a passage and staircase giving access to a street court or yard and enclosed within walls of stone brick or other incombustible material or is provided with other satisfactory means of escape in case of fire for the persons employed thereon regard being had to the purposes for which the premises are used The provisions of this section shall apply to all new and existing buildings but in the case of existing buildings the Corporation shall give notice of the provisions of this section to the occupier and such occupier shall not be deemed to have committed any offence against this section until after the expiration of six months from the service of such notice provided that in the case of successive occupiers such period shall run from the date of the first notice to any occupier of the same premises.

Means of escape from business premises in case of fire.

58. Every new building exceeding sixty feet in height shall be provided on the storeys the upper surface of the floors whereof is above sixty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as can be reasonably required under the circumstances of the case.

Means of escape at top of high buildings.

The provisions of this section shall after the expiry of five years from the passing of this Act apply to existing buildings.

Nothing in this or the preceding section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

59. Any person offending against or failing to comply with the requirements of the two last preceding sections shall be liable to a penalty of five pounds and to a daily penalty of two pounds for every day during which the offence or non-compliance continues.

Penalty in case of offences against provisions as to means of escape from premises in case of fire.

A.D. 1903.

Extended
definition of
public place
and street
for certain
purposes.

60.—(1) Any place of public resort or recreation belonging to or under the control of the Corporation and any unfenced ground adjoining or abutting upon any street shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be an open and public place and shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and also for the purposes of as much of section 28 of that Act as relates to the following offences :—

Every person who suffers to be at large any unmuzzled ferocious dog or sets on or urges any dog or other animal to attack worry or put in fear any person or animal :

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle :

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire :

Every person who throws or lays any dirt litter or ashes or nightsoil or any carrion fish offal or rubbish on any street.

(2) Any field or ground adjoining or abutting upon any street not being part of the curtilage of a house and not being separated from the street by a close fence not less than six feet in height shall be deemed to be an open and public place for the purposes of section 3 of the Vagrant Act Amendment Act 1873.

(3) Sections 24 25 and 26 of the Town Police Clauses Act 1847 shall extend and apply to the case of cattle straying in any recreation ground or public place belonging to the Corporation.

Provisions
as to regula-
tions of
street traffic.

61. The Corporation may from time to time make regulations with respect to such streets to be specified in the regulations as are specially liable to be obstructed by reason of the amount and nature of the traffic—

(A) Prescribing the line to be kept at any street crossing by all persons riding or driving ;

(B) Requiring the drivers of heavy and slow-moving vehicles to keep their vehicles to a particular portion of the street ; and

(c) Regulating the accesses to and method of exit from the Corporation's tramway cars at stopping places and controlling persons resorting thereto. A.D. 1903.

All regulations under this section shall be subject as regards the matters mentioned in paragraphs (A) and (B) of this section to the approval of the Secretary of State and as regards the matters mentioned in paragraph (c) to the approval of the Board of Trade.

Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

62. Every person who shall ride or drive so as to endanger the life or limb of any person or to the common danger of the passengers in any thoroughfare shall be liable to a penalty of not more than forty shillings and may be arrested without warrant by any constable who witnesses the offence. Dangerous riding and driving.

63. Any person who shall frequent and use any street or any open space in the city either on behalf of himself or of any other person for the purpose of bookmaking betting or wagering or agreeing to bet or wager or paying or receiving or settling any bet or wager or receiving or paying any money as or in respect of any bet or wager shall be liable to a penalty not exceeding for the first offence five pounds for the second offence ten pounds and for the third and every subsequent offence fifty pounds. Betting.

64.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or dealer referred to in section 42 of the Act of 1901 for the purpose of inspecting such premises and the materials or commodities therein as an officer of the Corporation would have under section 102 of the Public Health Act 1875 in the cases therein mentioned. Inspection of premises.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

65. Notwithstanding anything contained in the Highway Act 1835 or in the Town Police Clauses Act 1847 no person shall act as the driver of or have the care of more than one cart or carriage each drawn by an animal or animals in any street in the city within a radius of one mile from the town hall or in any street or road No person to have care of more than one cart.

A.D. 1903. — within the city where any tramways are laid and no person shall fasten or allow to be fastened to the rear of any such cart or carriage any other cart or carriage drawn by an animal or animals or any animal or animals drawing a cart or carriage and any person acting in contravention of this enactment shall be liable to a penalty not exceeding twenty shillings for each offence.

Amendment
of section
XXX. of Act
of 1850.

66. The penalties imposed by section XXX. (As to the construction of chimneys of steam-engines &c.) of the Act of 1850 and the provisions of that section with respect to the recovery of penalties are hereby repealed and the following provisions shall have effect :—

Any person offending against the provisions of the said section shall be liable to a fine not exceeding five pounds and on a second conviction to a fine not exceeding ten pounds and for each subsequent conviction to a fine not exceeding fifty pounds and any such penalty may be recovered in a summary manner.

Publication
of lists of
voters.

67. For the purposes of the Registration of Electors Acts 1843 to 1891 it shall be sufficient (instead of publishing the entire lists of parliamentary voters and burgesses in accordance with those Acts) to publish the list of parliamentary voters and burgesses of each ward of the city at the times and in the manner provided by those Acts as if such ward were a separate parish.

Penalties for
non-compli-
ance with
provisions of
section 46 of
Act of 1897.

68. Any owner or occupier of any dye-works within the city who fails to comply with the provisions of section 46 (Dye-works &c. to deposit refuse) of the Act of 1897 shall be liable to a penalty not exceeding five pounds for every day on which such failure continues :

Provided that such penalty shall not be recoverable unless the Corporation shall have given such owner or occupier not less than twenty-one days' notice in writing requiring him to comply with the said provisions.

As to appeal.

69. Any person deeming himself aggrieved by any order judgment determination or requirement made or given under the provisions of this Act or the withholding or revocation of any certificate licence permission consent or approval to be granted under the provisions of this Act or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary

Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. A.D. 1903.

70. Offences against this Act and penalties costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner: Recovery of penalties &c.

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

71. All penalties recovered under this Act shall except in the case of penalties recovered against the Corporation be paid to the Treasurer and be by him carried to the credit of the city fund. Penalties to be paid over to treasurer &c.

72. The accounts of any receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882. Audit of accounts of Corporation.

73.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

74. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

75. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not Saving for railway companies.

A.D. 1903. — being used exclusively as a dwelling-house) or to any street upon or within any land or property belonging to the Great Northern Railway Company or the Lancashire and Yorkshire Railway Company and used by those companies respectively as a part of or in connection with their railway.

Crown
rights.

76. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

77. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act (in this Act referred to as "the costs of this Act") as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund or city rate.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

THE FORMER ACTS.

The Bradford Improvement Act 1850 ;
The Bradford Waterworks Act 1854 ;
The Bradford Corporation Waterworks Act 1854 ;
The Bradford Corporation Waterworks Amendment Act 1855 ;
The Bradford Corporation Waterworks Act 1858 ;
The Bradford Waterworks Act 1862 ;
The Bradford Corporation Act 1866 ;
The Bradford Waterworks and Improvement Act 1868 ;
The Bradford Waterworks Act 1869 ;
The Bradford Corporation Gas and Improvement Act 1871 ;
The Bradford Improvement Act 1873 ;
The Bradford Waterworks and Improvement Act 1875 ;
The Bradford Water and Improvement Act 1878 ;
The Bradford Corporation Tramways Order 1880 ;
The Bradford Water and Improvement Act 1881 ;
The Bradford Electric Lighting Order 1883 ;
The Bradford Corporation Tramways Order 1883 ;
The Bradford Order confirmed by the Local Government Board's
Provisional Orders Confirmation (No. 4) Act 1884 ;
The Bradford Waterworks and Improvement Act 1885 ;
The Bradford Order confirmed by the Local Government Board's
Provisional Orders Confirmation (No. 8) Act 1886 ;
The Bradford Corporation Tramways Order 1886 ;
The Bradford Corporation (Various Powers) Act 1887 ;
The Bradford Corporation Tramways Order 1888 ;
The Bradford Corporation Tramways Order 1890 ;
The Bradford Corporation Water Act 1890 ;
The Bradford Corporation Water Act 1892 ;
The Bradford Tramways and Improvement Act 1897 ;
The Bradford Tramways and Improvement Act 1899 ;
The Bradford (Yorks) Extension Order 1899 ;
The Bradford and Leeds Light Railway Order 1899 ;
The Bradford Corporation (Tramways Gas and Various Powers)
Act 1900 ;
The Bradford Corporation Act 1901 ; and
The Bradford Corporation Act 1902.

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